GURA MAGWENZI
versus
TAKAWIRA TUCKSON MUVEZWA
and
CHIBO MAGWENZI
and
MUREHWA RURAL DISTRICT COUNCIL
and
THE SHERIFF OF THE HIGH COURT OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 17 and 20 July 2026

Opposed Application

L Michael, for the applicant
D V Kufaruwenga, for the 1st respondent
No Appearance for the 2nd respondent
T L Mazadza, for the 3rd respondent

MAMBARA J:

[1] This is an application for a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*]. The core question is whether rights in Stand 15 Dandara Business Centre, Murehwa, were ever lawfully alienated to the first respondent, and whether an order granted in respect of Stand 33 could lawfully found the applicant's eviction from Stand 15. Section 14 empowers this court, in its discretion, at the instance of an interested person, to determine an existing, future or contingent right, and the classic formulation in *Johnsen* v *Agricultural Finance Corp* 1995 (1) ZLR 65 (S) requires a direct and substantial interest in a real controversy, not an abstract question.

[2] The applicant easily crosses that threshold. On the record before me he says that on 8 October 2011 he purchased a commercial property comprising a bottle store and butchery under commercial lease number CL56058 from the second respondent for US$8,000; that he

took occupation; that he made improvements; that he paid council-related charges and capital gains tax; and that council billing records later reflected CL56058 in his name. Those are not the averments of a busybody. They speak to a concrete claim of rights and occupation over an identified commercial holding.

[3] The first respondent's competing claim rests on a later document. The uploaded agreement between the first and second respondents records that the seller was the owner of "Stand No. 33 Dandara Business Center," that the owner had applied to subdivide that stand into "sub-divisions A and B," that the subdivision "is yet to be approved by Murehwa Rural District Council," and that subdivision B was a built structure for a grinding mill. The agreement then purported to sell that subdivision to the first respondent.

[4] The first respondent thereafter obtained an order in case No. 108/17. The uploaded copy of that order directed transfer of ownership rights from the second respondent to the first respondent "in respect of Stand No. 33 Dandara Business Centre, Murehwa," and authorised the messenger of court to sign the papers in the event of default. On its face, it was an order concerning Stand 33, not Stand 15.

[5] The record then takes a decisive turn. A later report by Murehwa Rural District Council states that Stand 33 is occupied by a crèche and a Seventh Day Adventist church; that the contested commercial building is in fact developed on Stand Number 15; that the disputed commercial development is one stand; and, crucially, that council "erroneously ceded Stand 33, which is a church stand and not a commercial stand, instead of the correct Stand 15," because the cession was processed solely on the court order without the correct site plan.

[6] There is also in the uploaded bundle a later ruling in the eviction litigation between the present applicant and first respondent. That ruling records that the plaintiff sued for eviction from "commercial stand number 33 Dandara Business Centre" on the footing that he had purchased the whole stand, and it concludes that the plaintiff had proved his claim because "his agreement of sale states that stand number 33 was sold to him." The premise of that ruling, again, was Stand 33.

[7] Against that background, the issues for determination are fourfold. First, whether this court may competently grant declaratory relief notwithstanding the continued existence of the order in case No. 108/17. Second, whether the first respondent's agreement with the second respondent was void under s 39 of the Regional, Town and Country Planning Act. Third, whether the order and execution process referring to Stand 33 could lawfully found eviction

from Stand 15. Fourth, whether, on the record before the court, the applicant is entitled to a declaration of rights in Stand 15.

[8] On the first issue, I do not accept that the present proceedings amount to an impermissible collateral attack on the order in case No. 108/17. That order remains what it says it is: an order concerning Stand 33. The controversy before me is whether that order, and steps taken under cover of it, can lawfully affect Stand 15. That is a distinct question. The doctrines of *res judicata* and finality do not bar litigation unless, at minimum, there is the requisite identity of parties, subject-matter, cause, and a final determination of the very issue later sought to be re-opened. Recent Zimbabwean authority reaffirms those requirements and stresses that a judgment cannot be treated as one in rem beyond what it actually and finally determines.

[9] What case No. 108/17 finally determined, on the document placed before me, was that the first respondent was to receive rights in respect of Stand 33. It did not determine rights in Stand 15. The later council report does not enlarge the order. It merely demonstrates that the property description used in the litigation and cession process was materially wrong.

[10] I turn then to the legality of the first respondent's underlying agreement. Section 39(1)(b)(i) of the Regional, Town and Country Planning Act [*Chapter 29:12*] prohibits any person from entering into any agreement "for the change of ownership of any portion of a property" except in accordance with a permit granted in terms of s 40. The language is peremptory.

[11] Zimbabwean authority on this point is settled. In *X-Trend-A-Home (Pvt) Ltd* v *Hoselaw Investments (Pvt) Ltd* 2000 (2) ZLR 348 (S) the Supreme Court held that what the statute prohibits is the agreement itself where it concerns an unsubdivided portion, and that it does not matter whether transfer is to happen later or on fulfilment of a suspensive condition. *Kanduru* v *Chihumbiri & Anor* (HH 53 of 2002) [2002] ZWHHC 53 (11 April 2002) faithfully applied that holding, stating that an agreement for change of ownership of an unsubdivided portion is prohibited even if transfer is postponed until a permit is obtained. *Tsamwa* v *Hondo & Ors* 2008 (1) ZLR 401 (H); *Tsamwa* v *Hondo & Ors* (HC 6551 of 2005) [2008] ZWHHC 1053 (24 June 2008) held likewise and made the point explicitly that a later-issued permit cannot retroactively validate an agreement that was illegal when made. More recently, *Sahwenje* v *Chitemere and 2 Ors* (237 of 2024) [2024] ZWHHC 237 (10 June 2024) restated that agreements concluded before subdivision approval, and consequential steps taken on their back, are nullities.

[12] The first respondent's agreement falls squarely within that prohibition. It does not purport to sell an already lawfully subdivided and approved stand. It expressly records that the seller had only applied to subdivide Stand 33 into A and B, that approval was yet to be obtained, and that what was being sold was subdivision B. That is the very transaction s 39 forbids.

[13] This conclusion is not altered by the fact that the first respondent later sought and obtained court assistance. If the juridical spring is forbidden by statute, the stream cannot become lawful merely because it later flows through litigation. The court in *Tsamwa* v *Hondo & Ors, supra,* invoked the classic Commonwealth principle from *In re Mahmoud and Ispahani* [1921] 2 KB 716 (CA) that where legislation prohibits the very contract, the court will not lend its aid to enforcement. The same public-interest rationale underlies the Zimbabwean cases on s 39.

[14] Nor is this a case like *GuardForce Investments (Pvt) Ltd* v *Ndlovu & Ors* 2016 (1) ZLR 891 (S) where the Supreme Court treated the relevant agreement differently because it concerned the sale of the whole property with a future ceding arrangement, not a direct sale of an identified unapproved subdivision. Here the agreement itself expressly isolates "subdivision B" and acknowledges that council approval had not yet been obtained. That distinction is decisive.

[15] I therefore hold that the agreement between the first and second respondents, being an agreement for the change of ownership of an unapproved subdivision, was void *ab initio.*

[16] Once that is so, the law on nullity becomes engaged. In *Heating Elements Engineering (Pvt) Ltd* v *Eastern & Southern African Trade & Development Bank* 2002 (1) ZLR 351 (S), the Supreme Court held that a judgment which should not have been granted because the prescribed procedure was not complied with is a nullity. In *Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S), later frequently re-affirmed, the Supreme Court held that if an order was void *ab initio* it was void at all times and for all purposes, and nothing could depend on it. That proposition draws directly from *MacFoy* v *United Africa Co Ltd* [1962] AC 152 (PC); [1961] 3 All ER 1169, where Lord Denning explained that one cannot put something on nothing and expect it to stand.

[17] I do not say that every irregular judgment is automatically a nullity. But where the very rights sought to be enforced are founded on a transaction which the statute forbids, the court does not sanitise the illegality by the mere grant of an order obtained in the absence of

an affected occupier and on a materially different description of the property. At the very least, the first respondent cannot rely on such an order as a self-executing charter over land different from that named in it.

[18] That leads to the third issue: construction and execution of the order. The law is plain that court orders must be construed primarily according to their language. The South African authorities in *Firestone South Africa (Pty) Ltd* v *Genticuro AG* 1977 (4) SA 298 (A) and *Hulisani Viccel Sithangu* v *Capricorn District Municipality* (593/2022) [2023] ZASCA 151 (14 November 2023) are valuable persuasive statements of a principle long consistent with our own law: if the meaning of an order is clear and unambiguous, extrinsic matter cannot be used to contradict, vary, qualify, or supplement it.

[19] The order in case No. 108/17 is clear. It refers to Stand No. 33 Dandara Business Centre, Murehwa. There is nothing in its wording that authorises transfer of, or eviction from, Stand 15. If the first respondent believed that the order contained a patent clerical misdescription, the remedy lay in approaching the court for correction or variation. Zimbabwean procedure now recognises in r 29 of the High Court Rules, 2021 the power to correct ambiguities, patent errors, or omissions but such correction is limited and cannot be used by litigants or enforcement officers to re-write the merits of an order.

[20] The first respondent did not obtain such correction. Instead, he treated Stand 33 and Stand 15 as interchangeable and proceeded to execute against the latter. That course was unlawful. The sheriff or messenger draws authority from the writ or warrant, and that authority must correspond with the judgment and the property identified in the execution process. In *Jonga* v *Chabata & Anor* (HC 2719 of 2017; HH 276 of 2017) [2017] ZWHHC 276 (3 May 2017), citing *Mhlanga* v *Sheriff of the High Court* 1999 (1) ZLR 276 (H), the High Court reiterated that sheriff's process must be preceded and delimited by a proper writ. South African authority in *Menqa and Anor* v *Markom and Ors* (604/06) [2007] ZASCA 172; [2008] 2 All SA 235 (SCA); 2008 (2) SA 120 (SCA) is to the same effect in principle: where the execution foundation is invalid, the sheriff has no authority to pass rights on that basis.

[21] The later council report confirms the practical injustice of what occurred. Council itself records that Stand 33 is a church stand, that the contested commercial building is on Stand 15, and that council mistakenly processed the cession of Stand 33 solely because it followed the court order without the proper site plan. That evidence does not rescue the first respondent. It defeats his attempt to read the order as if it always meant Stand 15.

[22] I therefore hold that the eviction of the applicant from Stand 15 on the strength of an order and process referring to Stand 33 was unlawful.

[23] The fourth issue is whether the applicant is entitled to a declaration of rights over Stand 15. On the papers before me, the applicant's case is materially stronger than the first respondent's. His transaction is dated earlier, he says he purchased the commercial property held under lease number CL56058, he took possession, made improvements, and council records later reflected the lease account in his name. The first respondent, by contrast, relies on a later agreement expressly tied to an unapproved subdivision and to a stand number shown by the council report to be a different site altogether.

[24] If one accepts the applicant's version that he bought the commercial holding under lease number CL56058 as an identified commercial property, rather than a future not-yet-approved subdivision, s 39 does not strike at his bargain in the same way it strikes at the first respondent's. On the record before me, the applicant's merx was the existing bottle store and butchery held under the commercial lease account; the first respondent's merx was subdivision B of an unsubdivided stand that was yet to be approved. That is an important distinction.

[25] Even if I were wrong on that and were to assume, for the sake of argument, that this matter should be approached as a double sale, the applicant would still prevail. In *Guga* v *Moyo & Ors* 2000 (2) ZLR 458 (S) the Supreme Court stated the basic rule that where transfer has not passed to either purchaser, the first purchaser succeeds unless special circumstances affect the balance of equities. *Mwayipaida Family Trust* v *Madoroba & Ors* 2004 (1) ZLR 439 (S) reinforces the policy preference for the earlier transaction, and later cases emphasise that the burden lies on the later purchaser to establish special circumstances.

[26] There are no such special circumstances here. The first respondent's own agreement warned him that the transaction concerned a subdivision yet to be approved. It also tied the bargain to Stand 33 and to a grinding mill. He cannot plausibly say he was an innocent purchaser of the applicant's bottle store and butchery on Stand 15. The later Zimbabwean cases make plain that a second purchaser who shuts his eyes to obvious risk will not be favoured in equity.

[27] The first respondent argued, in substance, that because case No. 108/17 remains extant, the applicant had first to overturn it before seeking declaratory relief. That submission would have force if the applicant were seeking to undo a valid judicial determination of rights in the same property and between the same interests. But he is not. He seeks a declaration

that rights in Stand 15 were never lawfully displaced by an order concerning Stand 33, and that subsequent cession and eviction based on that order could not lawfully operate beyond its language. That is a proper controversy for declaratory relief under s 14.

[28] I add this. The applicant was not cited in case No. 108/17, yet he says he was the person in possession. Judgments affecting substantial rights may be rescinded where they were obtained without citation of an affected interested party. I need not go that far here, because the present matter can be decided on the narrower and firmer ground that case No. 108/17, as produced before me, did not and could not determine Stand 15.

[29] For all those reasons, I conclude that the first respondent acquired no enforceable rights in Stand 15 from the 2012 agreement or from the 108/17 order; that the applicant's eviction from Stand 15 pursuant to an order concerning Stand 33 was unlawful; and that the applicant is entitled to a declaratory order recognising his rights over Stand 15.

[30] In the result, the following order is made:

1. It is declared that the agreement of sale concluded between the first respondent and the second respondent, being an agreement for the sale of an unapproved subdivision described in the record as subdivision B of Stand No. 33 Dandara Business Centre, is void *ab initio* and unenforceable in law.

2. It is further declared that the order granted in case No. 108/17, and any cession or transfer process founded upon it, relate only to Stand No. 33 Dandara Business Centre and are incapable, without lawful judicial correction or variation, of conferring rights in, or justifying eviction from, Stand No. 15 Dandara Business Centre.

3. The eviction of the applicant from Stand No. 15 Dandara Business Centre pursuant to any order, writ, warrant, or process identifying Stand No. 33 is hereby declared unlawful and is set aside.

4. The applicant is hereby declared the lawful holder of the rights and interests in Stand No. 15 Dandara Business Centre, Murehwa, deriving from the 8 October 2011 transaction and the commercial lease account CL56058.

5. The second respondent shall, within ten days of service of this order, sign all papers necessary to effect cession and transfer of the rights and interests in Stand No. 15 Dandara Business Centre to the applicant failing which the Sheriff of the High Court is authorised to sign such papers on his behalf.

6. The third respondent shall, within fourteen days of service of this order, amend or regularise its records in a manner consistent with this judgment and shall not treat the cession processed under case No. 108/17 in respect of Stand No. 33 as affecting Stand No. 15.

7. The first respondent and all those claiming occupation through him shall vacate Stand No. 15 Dandara Business Centre within thirty days of service of this order, failing which the Sheriff is authorised to eject them.

8. The first and second respondents shall pay the costs of suit jointly and severally, the one paying the other to be absolved, on the ordinary scale.

MAMBARA J…….

Mugiya Law Chamber, Applicant's Legal Practitioners
Kufaruwenga, Kajevu & Zihanzu, First Respondent's Legal Practitioners
Matsikidze Attorneys At Law, Third Respondent's Legal Practitioners